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January 27, 2026

Via E-mail Only

Mr. John P. Pederson, AICP
Zoning Division Manager
Zoning Division
Cobb County Community Development Agency
Suite 400
1150 Powder Springs Road
Marietta, Georgia 30064

RE: Application for Rezoning - Application No. Z-5 (2026)
 Applicant: The Revive Land Group, LLC
 Property Owners: Estate of Lucille Garrett;
 William D. Brown
 Property: 10.171 acres, more or less, located southerly
 of the terminus of Old Horseshoe Bend Road,
 easterly and westerly sides of Barrett
 Parkway, and northwesterly of the
 intersection of Powder Springs Road and
 Barrett Parkway; Land Lots 642 and 691,
 19th District, 2nd Section, Cobb County,
 Georgia

Dear John:

The undersigned and this firm represent The Revive Land Group, LLC, as Applicant (hereinafter referred to as "Applicant"), and the Property Owners set forth in the Application for Rezoning and enumerated above (hereinafter collectively referred to as "Owners" or "Property Owners"), in their Application for Rezoning with regard to 10.171 acres, more or less, located southerly of the terminus of Old Horseshoe Bend Road, the easterly and westerly sides of Barrett Parkway, and northwesterly of the intersection of Powder Springs Road and Barrett Parkway; Land Lots 642 and 691, 19th District, 2nd Section, Cobb County, Georgia (hereinafter the "Property" or "Subject Property"). After meetings and discussions with Planning and Zoning Staff and various Cobb County Departmental Representatives, ongoing discussions and meetings with area residents and homeowner representatives, reviewing the Departmental Comments and Staff Recommendations,

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and reviewing the uses of surrounding properties, we have been authorized by the Applicant to submit this letter of agreeable stipulations and conditions which, if the Application for Rezoning is approved, as submitted, shall become a part of the grant of the requested zoning and shall be binding upon the Subject Property. The proposed stipulations are as follows:

- (1) Applicant seeks rezoning of the Subject Property from the existing zoning classification of R-20 to the proposed zoning classification of RA-5, site plan specific to the Site Plan dated November 20, 2025, and submitted with the Application for Rezoning. A reduced copy of the Site Plan is attached as Exhibit "A" and incorporated herein by reference.
- (2) The Subject Property shall be developed for a single-family detached residential community consisting of a maximum of forty-three (43) homes.
- (3) Applicant agrees the minimum house size for the homes in the proposed community shall be 1,600 square feet of heated and cooled living space and shall have a minimum two-car garage.
- (4) Homes in the proposed community shall be Traditional and Craftsman in architecture and style and contain exterior materials of brick, stone, stacked stone, cedar shake, board and batten, traditional lap-siding, hardi-plank, or any combination thereof.
- (5) Applicant agrees to the creation of a mandatory homeowners association consistent with communities within the area. The mandatory homeowners association shall be responsible for the upkeep and maintenance of entrance areas, common areas, open space areas, amenity area, mail kiosk, landscaping around detention areas, and the like, contained within the proposed residential community.
- (6) Additionally, and in conjunction with the creation of the mandatory homeowners association, Applicant agrees to the recording and enforcement of a Declaration of Covenants, Easements, and Restrictions which will contain covenants, rules, and regulations applicable to the proposed development.
- (7) Entrance signage for the proposed community shall be ground based, monument-style signage, and shall consist of brick, stone, stacked stone, stucco, or combinations thereof, with accents, complementary to materials used in the construction of the homes within the community. Lighting for the entrance signage shall be in-ground. Entrance landscaping shall be professionally designed and

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implemented, with final approval being included as part of the overall Landscape Plan. Maintenance of the entrance area shall be through the mandatory homeowners association as set forth in the Covenants.

- (8) The proposed community shall have a passive amenity area consisting of, at a minimum, a community gathering area and pavilion and open space/park areas.
- (9) All amenity lighting shall be environmentally sensitive, shoe-box luminaries so as to prevent light from penetrating outside Applicant's property.
- (10) Applicant agrees to install lighting in the mail kiosk shelter.
- (11) The setbacks for the proposed residential community shall be as more particularly shown and reflected on the Site Plan.
- (12) Detention areas shall be fenced, a minimum of six (6) feet in height. Landscaping for these areas shall be to the exterior of the fencing for purposes of visual screening. Final approval of the landscaping shall be included as part of the Landscape Plan for the proposed community.
- (13) Applicant agrees to a minimum twenty (20) foot landscaped or undisturbed buffer around the perimeter of the Property, excepting only on Barrett Parkway, which shall have a ten (10) foot landscaped or undisturbed buffer, together with street frontage and entrance area landscaping. Areas not disturbed during development and construction may remain undisturbed.
- (14) All landscaping referenced herein shall be approved by the Cobb County Arborist as part of the Plan Review and Permitting Process and incorporated into the overall Landscape Plan for the proposed community.
- (15) Minor modifications to the within stipulations, the referenced Site Plan, lighting, signage, landscaping, building architecture, site features, and the like, may be approved by the District Commissioner, as needed or necessary, except for those that:
 - (a) Increase the density of a residential project or the overall square footage of a non-residential project;

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- (b) Reduce the size of an approved buffer adjacent to a property that is zoned the same or in a more restrictive zoning district;
 - (c) Relocate a structure closer to the property line of an adjacent property that is zoned the same or in a more restrictive zoning district;
 - (d) Increase the height of a building that is adjacent to a property that is zoned the same or in a more restrictive zoning district;
 - (e) Change an access location to a different roadway;
 - (f) Would be in direct contradiction or conflict with any of the stipulations of this rezoning;
 - (g) Would be in direct contradiction or conflict with Cobb County Code and Ordinances; or
 - (h) Would be in direct contradiction or conflict with any Staff Recommendations that were adopted into the final zoning decision.
- (16) Approval of the proposed rezoning shall also constitute approval by the Cobb County Board of Commissioners of the access and curb-cut onto Barrett Parkway.
- (17) All setbacks, landscape, and buffer areas may be penetrated for purposes of fencing, access, utilities, and stormwater management; including, but not limited to, drainage and detention facilities, utilities, and any and all slopes or other required engineering features of the foregoing.
- (18) Applicant agrees to comply with all Cobb County Stormwater Management requirements applicable to the Subject Property.
- (19) Applicant agrees to comply with the Cobb County Water and Sewer Staff Comments and Recommendations.
- (20) Applicant agrees to comply with the Cobb County Department of Transportation Staff Comments and Recommendations; excepting only, that the streets within the proposed community shall be public streets and not subject to any standard which requires fifty (50) foot separation between driveways.

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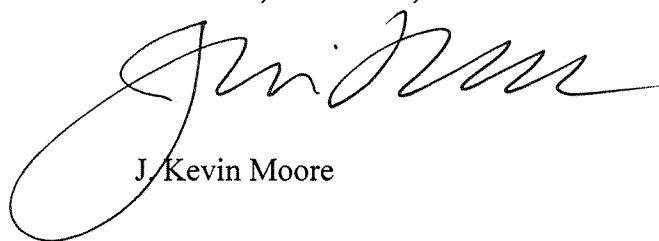
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We believe the requested zoning, pursuant to the Site Plan and the stipulations set forth herein, is an appropriate use of the Subject Property while taking into consideration the existing conditions and use of the Property and the area neighborhoods. The proposed community shall be a quality development, providing a much needed and highly sought-after type of community within the Cobb County area. Additionally, the proposed community shall be compatible with surrounding developments and be an enhancement to the Subject Property. Thank you for your consideration in this request.

With kindest regards, I remain

Very truly yours,

MOORE, INGRAM, JOHNSON & STEELE, LLP



J. Kevin Moore

JKM:cc

Attachment

c: Cobb County Board of Commissioners:
Lisa N. Cupid, Chairwoman
Erick Allen
JoAnn K. Birrell
Keli A. Gambrill
Monique Sheffield
(With Copy of Attachment)

Cobb County Planning Commission:
Nadia Faucette, Chairwoman
Fred Beloin
Deborah Dance
Deidra Massey
Sara Micheletto
(With Copy of Attachment)

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c: Terry L. Martin, AICP, CNU-A
Senior Planner
Zoning Division
Cobb County Community Development Agency
(With Copy of Attachment)

Eileen Carlsen
Old Horseshoe Bend Road Resident

The Revive Land Group, LLC
(With Copy of Attachment)

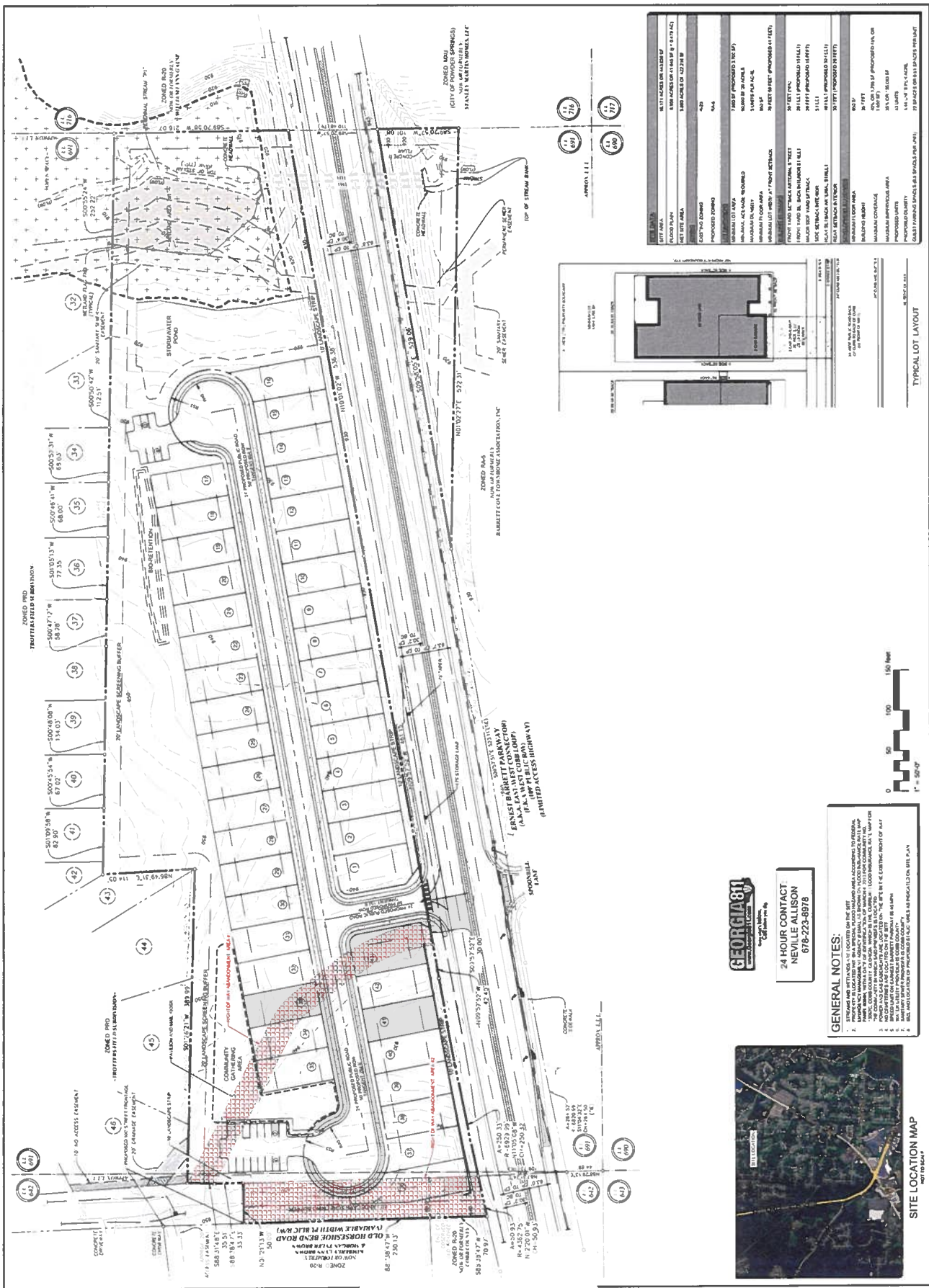


EXHIBIT "A"